

result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.

CCP § 473(b).

The Request for Dismissal filed on May 7, 2026 was signed by Plaintiff's counsel Aaron W. Moore, utilizing Judicial Council Form CIV-110, which has been adopted for mandatory use. Under Item 1, counsel checked the a.(2) box that reads "Without Prejudice" rather than the a.(3) box that reads "Without prejudice and with the court retaining jurisdiction (Code. Civ. Pro., § 664.6)."

Plaintiff has requested relief from the dismissal pursuant to CCP § 473(b), arguing that "Plaintiff dismissed the case based upon a mistaken belief that Defendant would comply with the parties' Settlement Agreement. Alternatively, Defendant misrepresented to Plaintiff that Defendant would comply with the Agreement, which equally constituted mistake, inadvertence, surprise, or excusable neglect within the meaning of CCP § 473(b)." *Plaintiff's Memorandum*, p. 3, lns. 16-19. Plaintiff provided no evidence to support this. The only evidence provided by Plaintiff is the Declaration of Eric Woodstrom which does not address the mistaken belief asserted in the moving papers. Without any evidence of the mistaken belief, the Court denies the CCP § 473(b) portion of the motion and cannot reach the rest as the case has been dismissed and there is no retention under CCP § 664.6.

Had Plaintiff presented evidence of the statements made in the moving papers, the motion would still be denied. Plaintiff has asserted a deliberate act based on a mistaken belief. However, based on the evidence that was presented, which includes the settlement agreement that includes a CCP § 664.6 retention in Section 5, it is puzzling why the Request for Dismissal was filed without CCP § 664.6 retention of jurisdiction. Had an attorney affidavit of fault been filed on the basis that counsel was neglectful in checking box 1.a.(2) or that checking box 1.a.(2) was a mistake, the outcome would be different. However, Plaintiff has made it clear in the moving papers and again in the reply that dismissing without CCP § 664.6 retention was a deliberate act based on a mistaken belief.

Attorney Fees. Defendant requests that the Court find Defendant to be the prevailing party on the motion and find that Defendant be awarded its reasonable attorney fees and costs in an amount to be established by noticed motion under CRC 3.1702. Section 5 of the settlement agreement contains a sentence that reads, "The prevailing party in any action or proceeding related to the enforcement of this Agreement shall be entitled to recover its attorney fees and costs." While the Court can easily find that Defendant is the prevailing party on the CCP § 473(b) motion, the Court's jurisdiction ends at the CCP § 473(b) motion. Per Defendant's own argument, the Court does not have jurisdiction to enforce the settlement agreement. The Court will make no further findings.

The motion to set aside is **DENIED**. The Court does not have jurisdiction to reach the balance of the motion. Plaintiff submitted a proposed Order that will be modified to reflect the Court's ruling.

JPMORGAN CHASE BANK, N.A. VS. SEVERE

CASE NUMBER: 25CVG-01191

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Aleta N. Severe. Despite being timely notice with the motion, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order, however, it was stapled to the moving papers and cannot be detached. Plaintiff will need to submit a proposed Order for execution. The trial date of August 17, 2026 is confirmed.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien seek admission pro hac vice in order to represent Defendant Medtronic, Inc. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application. One of the requirements is that notice of the hearing must be given at the time prescribed in CCP § 1005 unless the court has prescribed a shorter period. CRC 9.40(c)(1). The Applications were filed on June 26, 2026. The accompanying proof of service indicates service on the necessary parties via email on June 26, 2026. This is not timely per CCP § 1005(b). The Applications are **DENIED** without prejudice for not being filed or served in compliance with CCP § 1005(b).

EATMON, ET AL VS. LOCKWOOD, ET AL

CASE NUMBER: CVCV19-0191680

Tentative Ruling on Motion for Earnings Withholding Order: Judgment Creditors' Daniel Lockwood and Roseanne Lockwood move for an order to issue an earnings withholding order against the Judgment Debtor's spouse, Christine Eatmon, pursuant to CCP section 706.109. Judgment Debtor Jason Eatmon was timely served by mail with the motion and was additionally served by substitute service. Spouse Christine Eatmon was timely served by personal service. Christine Eatmon opposes the motion.

"An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion." CCP § 706.109. "Except as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." Fam. Code § 910(a). "Except as otherwise provided by statute, all property, real or personal, wherever situated, acquired by a married person during the marriage while domiciled in this state is community property." Fam. Code § 760. "It is well settled that earnings of either the husband or the wife acquired during the marriage constitute community property." *State Bd. of Education v. Woo* (2000) 82 Cal.App.4th 481.

Here, the Lockwoods seek to enforce a judgment entered against Jason Eatmon. It is undisputed that Jason Eatmon and Christine Eatmon are currently married and were married at the time the judgment was entered and the debt was accrued. While Christine Eatmon's wages are deposited into an account in the solely in her name, this does